Real Estate Regulatory Authority, Punjab
First Floor, Block-B, Plot No. 3, Sector-18 A, Madhya Marg, Chandigarh – 160018
Before the Bench of Sh. Rakesh Kumar Goyal, Chairman.
Phone No. 0172-5139800, email id: pschairrera@punjab.gov.in & pachairrera@punjab.gov.in

1.	**Execution Application No.**	:-	36/2024 in GC No. 0203/2021
2.	**Name & Address of the Complainant/ Applicant/ Decree Holder**	:-	M/s Fortune Multitech Pvt. Ltd., SCO No. 404, Sector 20, Panchkula-134117
3.	**Name & Address of the Respondents/ judgment Debtors**	:-	Sh. Sohit Sharma, S/o Sh. Satpal Sharma, Apartment No.203, Tower I, Victoria Heights, Peer Muchalla, Tehsil Derabassi, Punjab – 160104.
4.	**Date of filing of Execution Application**	:-	24.04.2024
5.	**Name of Counsel for the complainant, if any.**	:-	Sh. Varun Mittal, Advocate
6.	**Name of Counsel for the respondent, if any.**	:-	None for the respondent.
7.	**Section and Rules under which order is passed**	:-	Section 40(1) of the RERD Act, 2016 r.w. Rule 24 and 25 of Pb. State RERD Rules, 2017 for execution of order dated 17.03.2022.
8.	**Date of Order**	:-	03.08.2026

Order u/s. 40(1) of Real Estate (Regulation & Development) Act, 2016 read with Rules 24 and 25 of Pb. State Real Estate (Regulation & Development) Rules, 2017.

The present applicant seeks the execution of the order dated 17.03.2022 passed by the Chairperson, Real Estate Regulatory Authority, Punjab in Complaint No.0203 of 2021 titled as M/s Fortuna Multitech Pvt. Ltd., SCO 404, Sector 20, Panchkula (The Decree Holder) Vs. Sh. Sohit Sharma, S/o Sh. Satpal Sharma, Apartment No.203, Tower I, Victoria Heights, Peer Muchalla, Tehsil Derabassi, Punjab – 160104.

2. In brief, the respondent/ the judgment debtor (Refer as JD subsequently in this order) was allottee of Apartment No.203 in Tower 'I' of real estate project named Victoria Heights, Peer Muchhalla. As per facts available on the record, the possession of the flat was given to respondent/ judgment debtor on 17.05.2018. The respondent/ judgment debtor was liable to pay maintenance charges @ Rs.1.50 per square foot per month from date of possession with an escalation of 15% every year. The respondent/ judgment debtor paid the maintenance charges till November,

2018 and thereafter failed to deposit the same. After considering the entire facts on the record, the Hon'ble Authority passed an order dated 17.03.2022 (supra). The scanned copy of the operative part of this order reads as under:-

6. As a result of the above discussion, the complaint is accepted and the respondent is directed to pay a sum of Rs.99,641/- (as per calculation sheet attached) within a period of 2 months from the date of receipt of this order.

Announced
Dated: 17.03.2022

(Navreet Singh Kang)
Chairperson

2.1 The scanned copy of calculation sheet to the said order dated 18.04.2022 is as under:-

Calculation in Complaint Number SCNo03032021
Case Title- Fortune Multitech Private Limited vs Sohit Sharma

Interest payable from	Interest calculated till	No. of Days	Maintenance Charges	ROI SBI highest MCLR +3%	Interest Amount
01-10-2018	31-03-2021	912	2700	9.30	966
01-01-2019	31-03-2021	821	2700	9.30	869
01-02-2019	31-03-2021	790	2700	9.30	836
01-03-2019	31-03-2021	761	2700	9.30	805
01-04-2019	31-03-2021	731	2700	9.30	773
01-05-2019	31-03-2021	701	3105	9.30	853
01-06-2019	31-03-2021	670	3105	9.30	816
01-07-2019	31-03-2021	640	3105	9.30	779
01-08-2019	31-03-2021	609	3105	9.30	742
01-09-2019	31-03-2021	579	3105	9.30	705
01-10-2019	31-03-2021	548	3105	9.30	668
01-11-2019	31-03-2021	517	3105	9.30	631
01-12-2019	31-03-2021	487	3105	9.30	594
01-01-2020	31-03-2021	456	3105	9.30	557
01-02-2020	31-03-2021	425	3105	9.30	520
01-03-2020	31-03-2021	396	3105	9.30	483
01-04-2020	31-03-2021	365	3105	9.30	446
01-05-2020	31-03-2021	335	3571	9.30	409
01-06-2020	31-03-2021	304	3571	9.30	377
01-07-2020	31-03-2021	274	3571	9.30	340
01-08-2020	31-03-2021	245	3571	9.30	304
01-09-2020	31-03-2021	214	3571	9.30	266
01-10-2020	31-03-2021	185	3571	9.30	230
01-11-2020	31-03-2021	154	3571	9.30	191
01-12-2020	31-03-2021	124	3571	9.30	154
01-01-2021	31-03-2021	95	3571	9.30	118
01-02-2021	31-03-2021	64	3571	9.30	79
01-03-2021	31-03-2021	35	3571	9.30	43
			90041		9,600

Maintenance Charges to be paid by the Respondent	90,041
+ Interest on Maintenance Charges	9,600
Total Amount to be paid	**99,641**

Navreet Singh Kang
Chairperson

3. The respondent/ judgment debtor neither paid the principal amount nor paid its interest. The order passed u/s. 31 of the Real Estate (Regulation and Development) Act, 2016 dated 17.03.2022 remained un-complied by the respondent/ judgment debtor till date.

4. Now the present execution application has been filed for execution of order dated 17.03.2022 passed in GC No. 0203/2021, in the case of M/s Fortune Multitech Pvt. Ltd., the applicant/ decree holder Vs. Sh. Sohit Sharma, the respondent/ judgment debtor under section 40 of the Real Estate (Regulation and Development) Act, 2016 read with Rules 24 & 25 of the Real Estate (Regulation and Development) Rules 2017. This Execution Application was received in this office vide Diary No. 2833 dated 24.04.2024 and the same was marked as Execution Application No. 36 of 2024.

5. The case was fixed for hearing on 07.05.2024 to be responded within fifteen days from the receipt of notice for the first time. Thereafter, regular hearings took place till 17.07.2026. The respondent/ judgment debtor neither replied nor responded. The notices could not be served through post. The applicant/ decree holder served the notice through email and also through dasti by way of affixture at the address given in the order. The counsel for the applicant/ decree holder appeared and complied with the notices from time to time. However, the respondent/ judgment debtor neither attended the proceedings nor responded. Non-filing of the reply or not objecting by the respondent/ judgment debtor to the contents claimed in the application by the applicant/ decree holder in the present execution application tantamount to admittance of this fact that the amount which has been claimed by the applicant/ decree holder in this execution application is acceptable to the respondent/ judgment debtor.

6. The above facts strengthen the belief that the respondent/ judgment debtor has nothing to say in this regard or has no objection to the contents of this application. As a result of the order dated 17.03.2022 (supra), the

respondent/ judgment debtor was liable to pay Rs.99,641/- within two months from date of receipt of the said order.

7. It has also been observed from the application filed by the Applicant/ decree holder that it has claimed an amount of Rs.1,31,625/- (Rs.99,641/- + Rs.31,894/ interest @ 10.70 for 36 months in the Column 8 & 9 of Execution Application) and Rs.1,32,975/- (Rs.99,641/- + Rs.33,334/- interest @ 10.85% for 37 months in the annexure attached with the Execution Application).

8. Based on the material available on the record, it is held that the respondent / judgment debtor has failed to comply with orders passed u/s. 31 of the Real Estate (Regulation and Development) Act, 2016 dated 17.03.2022. In these circumstances, the respondent/ judgment debtor is directed to pay a sum of **Rs.1,44,301/-** being the principal sum of Rs.90,041/- plus, Rs.9,600/- being interest from 01.12.2018 to 31.03.2021 as determined in the order under section 31 of RERD Act, 2016 dated 17.03.2022 and Rs.44,660/- being interest @ 09.30% per annum (i.e. 07.30% SBI's Highest MCLR rate plus 2%) from 01.04.2021 till 31.07.2026 in the present proceedings for execution of order dated 17.03.2022 in this case detailed below. The period for payment of interest will be considered from the next month in which payment was to be effected by the allottee to the previous month of the date in which payment has been effected by the allottee. Therefore, the calculation of interest upto 31.07.2026 is calculated as follows:-

Interest awarded upto	Interest payable from	Principal Amount Paid	Interest Calculated till	Rate of Interest as per order	Tenure	Interest Amount
1	2	3	4	5	6	7
31.03.2021	01.04.2021	90,041.00	31.07.2026	09.30%	64 months	Rs.44,660

9. The total sum payable upto 31.07.2026 amounts to Rs.**1,44,301/-** and the respondent/judgment debtor is directed to make the payments immediately. No further time is granted since the order u/s. 31 of the RERD Act, 2016 was passed on 17.03.2022 and the respondent/ judgement debtor was legally bound to make the said payment within 60 days of the order.

10. Any amount paid by the respondent/judgment debtor will be first deducted towards the interest payable by the respondent/judgment debtor and if amount paid is in excess of the interest payable then the balance

amount (amount paid – interest payable) will be deducted from the amount of maintenance etc. and so on.

11. Further, the respondent/judgment debtor shall make payment of Rs. **698/- per month** for the delayed period after 31.07.2026. The respondent/judgment debtor i.e. **Sh. Sohit Sharma, S/o Sh. Satpal Sharma**, Apartment No.203, Tower I, Victoria Heights, Peer Muchalla, Tehsil Derabassi, (Punjab) is therefore held liable for an amount of Rs.1,44,301/- as on 31.07.2026 and further in addition of Rs. 698/- as interest will be added per month till the recovery is fully affected. The respondent/ judgement debtor is further directed to pay the above amount at the earliest. In the result, the execution application is allowed. The amount of Rs.1,44,301/- as on 31.07.2026 and any further interest after 01.08.2026 @ Rs.698/- per month as provided u/s. 40 (1) of the Real Estate (Regulation and Development) Act, 2016 will be calculated as "Land Revenue" by the Competent Authority under the provisions of "Land Revenue Act, 1887". The Secretary of this Authority will issue a recovery certificate.

12. Further, any amount paid by the respondent/ judgment debtor shalll be considered as payment against the interest whatever is due and shall be set off against principal only after payment of whole of interest. The payment by respondent/ judgment debtor will be considered only after whole of interest due till date has been paid. Even subsequent payment if any will be first considered towards interest payment, if any becomes due on the unpaid principle amount. It is clarified that interest @ Rs.698/- per month will keep on generating till the whole payment of Rs.1,44,301/- is paid along-with refund of amount as per agreement.

13. The Secretary of the Real Estate Regulatory Authority, Punjab is hereby directed to issue the recovery certificate immediately. The respondent/ allottee (judgment debtor) and the complainant (decree holder) are directed to inform the Secretary of this Authority for any payment effected in compliance with the recovery certificate or call it back after it is fully satisfied and update the data of this Authority with the said transaction of payment.

Chandigarh
Dated: 03.08.2026

(Rakesh Kumar Goyal),
Chairman,
RERA, Punjab

F. No. Endst. No./CP/RERA/PB/PA/Sec.40/ 1120 **Date:** 12.08.2026

A copy of the above order may be sent by the Registry of this Authority to the followings for information as well as for their further necessary action:-

1. M/s Fortune Multitech Pvt. Ltd., SCO 404, Sector 20, Panchkula, Haryana – 134117.
2. Sh. Sohit Sharma S/o Sh. Satpal Sharma, Apartment No.203, Tower I, Victoria Heights, Peer Muchalla, Tehsil Derabassi, Punjab – 160104.
3. The Secretary, RERA, Punjab.
4. The Director (Legal).
5. The Complaint File.
6. The Master File.

(Sawan Kumar),
P.A. to Chairman
RERA, Punjab.